

Court No. - 2

Case :- WRIT - C No. - 50309 of 2011

Petitioner :- M/S Prem Steel (Pvt.) Ltd.

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Bharati Sapru,J.

As prayed, put up on Monday i.e. 5th September, 2011 as fresh.

Order Date :- 2.9.2011

S.P.

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Hon'ble Ashok Bhushan,J.

Hon'ble Sudhir Kumar Saxena,J.

Heard Shri Amit Asthalekar and Shri B.C. Rai, learned counsel for the petitioner, Shri Shashi Nandan, learned Sr. Advocate assisted by Shri Pankaj Kumar Shukla for the respondents.

By means of this petition, the petitioner has prayed for quashing the order of final assessment dated 3.8.2011 passed by the Executive Engineer, Electricity Distribution Division, District Muzaffarnagar.

Learned counsel for the petitioner in support of the writ petition raised various submissions including submission that the respondents have acted contrary to the provisions of para 6.8 of the Electricity Supply Code 2005 and at the time of checking of the meter no theft was found and even in the checking report no such material was communicated which may prove allegations of any theft.

Learned counsel for the petitioner submits that under the Electricity Supply code 2005, the petitioner has right to file an appeal within thirty days but even before expiry of the aforesaid period the electricity of the petitioner was disconnected.

Learned counsel for the petitioner has placed reliance on the decision of the Division Bench of this Court reported in **[2008(6)ADJ 660 (DB)], Ashok Kumar and others Vs. State of U.P. and others.**

Learned counsel for the respondents has raised a preliminary objection that the petitioner has right to file an appeal under section 127 of the Electricity Act 2003 and it is open for the petitioner to raise all the submissions which have been raised in the writ petition. in the appeal. Learned counsel for the respondents submits that the final assessment order is a detailed assessment order.

Considering the facts and issues raised in the writ petition, we are of the view that the petitioner should avail remedy of appeal under section 127 of the Electricity Act. 2003 and in the appeal the appellate authority shall examine the issues raised in the writ petition.

Learned counsel for the petitioner submits that the petitioner's Mill is required to run and disconnection of the electricity even for few days causes great prejudice and hardship to the petitioner.

In view of the above, we are of the view that the petitioner may be permitted

to file an appeal . The petitioner may file the appeal within three days from today. The appellate authority shall consider the issues raised and take appropriate decision on the appeal expeditiously preferably within thirty days from the date of filing of the appeal. The petitioner' may file the appeal within three days from today. The appellate authority s deposit already made before the respondents shall be adjusted in the deposit which is required to be made in the appeal.

We further observe that it will be open for the petitioner to make request for supply of such documents which may be necessary for purposes of filing the appeal, which may be provided to the petitioner.

With these observations, the writ petition is disposed of finally.

Let the certified copy of this order be given to learned counsel for the petitioner within twenty four hours on payment of usual charges.

Order Date :- 5.9.2011

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